

caused by the settlement funding in two installments, no funds may be distributed to the *cy pres* beneficiary until ordered at the compliance hearing.

Assuming that Plaintiff can accommodate the paragraph above titled Settlement Distribution, the Court intends to **GRANT** the motion. Plaintiff submitted a Proposed Order and Judgment that will be modified to reflect the Court's ruling. The Court retains jurisdiction pursuant to CRC 3.769(h). The Court sets the matter on **Monday, December 13, 2027 at 8:30 a.m. in Department 63** for a hearing on compliance. Prior to the compliance hearing, Plaintiff is expected to provide evidence that the first round of class member settlement checks were mailed, that any checks uncashed after 180 days were either included in the second check or sent again, and the number of class members who still have uncashed checks 180 days from date of the issuance of the second checks along with the total for the uncashed checks. Plaintiff should also provide evidence of all other distributions including Class Counsel, Plaintiff, Phoenix, and the LWDA. Evidence shall be filed no later than December 3, 2027.

WELTY, ET AL. VS. REYES BARRERA, ET AL.

CASE NUMBER: 25CV-0208430

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories, Set One: Plaintiff filed two discovery motions on August 3, 2026 that were both noticed for hearing today. On August 26, 2026, Plaintiff filed a Notice of Withdrawal as to the Motion to Compel Further Responses to Request for Production of Documents. The Court notes that attached to the Notice of Withdrawal, was a Notice of Withdrawal for this motion. Because the clerk is not able to separate documents, this motion was not formally withdrawn and is still on calendar today. Because it is apparent that Plaintiff is no longer seeking a ruling on this motion, absent an appearance by Plaintiff and a request otherwise, the Court will drop the matter from calendar.

WRIGHT, ET AL. VS. OROS BORJON, ET AL.

CASE NUMBER: 25CV-0208213

Tentative Ruling on Motion to Appoint Referee and Order Partition by Sale: Plaintiff Patricia L. Wright, Trustee of the Patricia L. Wright Trust DTD July 8, 2020 and Plaintiff Deborah Lee Hammerich, Trustee of the 2005 Amendment and Restatement of the 2000 Deborah Lee Hammerich Revocable Trust DTD September 28, 2020 move for partition by sale and appointment of a referee. Defendants Jose Fernando Oros Borjon and Ivonne Oros Borjon, Trustees of the Borjon Family Trust DTD January 19, 2019 filed a Response to the Motion.

An interlocutory judgment ordering partition by sale was entered on April 20, 2026. A hearing on fair market value (FMV) was held on July 10, 2026 and the Court found that the FMV is \$292,500. The Minutes from the July 10, 2026 hearing were served on all parties by mail on July 10, 2026 which served as the required notice under CCP § 874.317(a). The forty-five days have now elapsed with no party giving notice that they intend to buy out the other tenants. Because Plaintiffs have requested partition by sale, CCP § 874.317(d)(3) applies and the Court must send notice to all parties of the fact that no tenant provided notice of an intent to buy out and that the matter will proceed to partition under CCP §§ 874.318 and 874.320. Should this tentative ruling become final, the clerk is directed to serve today's minutes on the parties in order to constitute the required notice.

The property at issue is a single-family home. Therefore, partition in kind is not feasible and partition by sale will occur under CCP § 874.318(b). The Court finds that the sale shall be an open-market sale. CCP § 874.320(a). The list price shall be \$292,500. Pursuant to CCP § 874.320(b), absent an objection, the Court intends to appoint Drew Wahlund of Wahlund and Co. Realty as the disinterested real estate broker. Plaintiffs suggest setting the reasonable commission at no more than 5.5% of the sale price. As no contrary evidence has been provided by either party, the Court will set the commission at 5.5% absent argument otherwise.

Pursuant to CCP § 873.010(a), the Court shall appoint a referee to sell the property. The only proposed referee is Aaron W. Moore, who the Court knows to be a local attorney specializing in real estate law. There appears to

be no objection from Defendants. Absent an objection or further proposal, the Court intends to appoint Aaron W. Moore as the referee to act without bond with reasonable compensation being set at \$400 per hour. Defendants have requested that the referee's time be limited to only those tasks necessary for the sale of the home. The Court places an initial ten-hour limit on referee time. If further referee time is needed, either party may submit a request in writing. The Court will consider the request with no need for a hearing so long as the other party has been provided three days' notice that the request is being made. The Court will approve additional time if good cause is shown.

Plaintiffs request that the referee be authorized to accept an offer within 95% of the list price of \$292,500. This is a reasonable request and will be granted. All other aspects of the sale will be per the Code of Civil Procedure.

The motion is **GRANTED** as noted above. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The review hearing scheduled for September 8, 2026 is vacated. The matter will be on calendar on **Monday, October 26, 2026 at 9:00 a.m. in Department 63** for status of the sale. The parties are ordered to provide the Court with separate or joint status statements no later than 5 court days prior to the hearing. Plaintiffs are ordered to provide notice of the October 26, 2026 review hearing.

9:00 a.m. – Review Hearings

ALPINE BLUE VS. HURLEY, ET AL
CASE NUMBER: CVCV21-0198057

This matter is on calendar for review regarding status of judgment or dismissal. The matter has not been dismissed. The Court continued this matter from June 29, 2026 and ordered that Plaintiff and any party that filed a Cross-Complaint file a status statement no less than five court days prior to today. No status statements have been filed. **An appearance by all active parties is necessary on today's calendar. Failing to appear may result in the issuance of an Order to Show Cause Re: Monetary Sanctions.**

CALIFORNIA CAPITAL INSURANCE COMPANY VS. BROWN
CASE NUMBER: 25CV-0207412

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Settlement of Entire Case was filed on May 28, 2026, which requires that the matter be dismissed within 45 days. However, the parties filed status statements indicating that the settlement has not been finalized because the parties are working to resolve related personal injury claims. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The Court intends to dismiss the matter without prejudice on November 9, 2026 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the November 9, 2026 hearing. **No appearance is necessary on today's calendar.**

CHANCE, ET AL. VS. STEALTH AUTO RECOVERY
CASE NUMBER: 25CV-0208848

This matter is on calendar for review regarding status of the case. The Court granted Plaintiffs' counsel's Motions to be Relieved as Counsel on this morning's Law & Motion calendar. The review hearing is continued to **Monday, November 2, 2026 at 9:00 a.m. in Department 63** for status of counsel. **No appearance is necessary on today's 9:00 a.m. calendar.**